IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
(*through* Hybrid Mode)
COURT-I

Item No. 104

RST.A(COMPANIES ACT)/5(CH)2024
And
CA(CAA) No. 45/Chd/Chd/2019
(1st Motion)
(Disposed of on 05/04/2024)

IN THE MATTER OF:

Ashish Mohan Gupta …. Transferor Company

And

Hind Motors Ltd. ..... Transferee Company

Under Section: 230-232, CA 2013, R 11 NCLT 2016

Order delivered on 16.05.2025

CORAM:

SH. SHISHIR AGARWAL
HON'BLE MEMBER (T)

SH. HARNAM SINGH THAKUR
HON'BLE MEMBER (J)

PRESENT:

For the Applicant : Mr. Vikas Kuthiala, Advocate

ORDER

RST.A(COMPANIES ACT)/5(CH)2024

The present application has been filed for restoration of the main petition for first motion which was dismissed for non-prosecution on 05.04.2024. The ground taken in the application for restoration is that on that date of hearing, learned counsel for the petitioner was present before the Hon'ble High Court and due to traffic snarl in the parking of Hon'ble High Court, he could not attend this Court on time. Even if this ground is taken

into consideration then at least present application for restoration should has been filed within 30 days, that is, within the reasonable time. However, it is filed after lapse of more than three months. Therefore, learned counsel for the applicant is directed to explain the reason of delay for filing this application. Let the matter be listed on 30.06.2025.

Sd/-
(SHISHIR AGARWAL)
MEMBER (T)

Sd/-
(HARNAM SINGH THAKUR)
MEMBER (J)

Tania